

VEHICLE PURCHASE, FLEET MANAGEMENT & ASSURED RENTAL AGREEMENT

THIS VEHICLE PURCHASE, FLEET MANAGEMENT & ASSURED RENTAL AGREEMENT ("Agreement") is made and executed on this ____ day of _____, 20____

BY AND BETWEEN

BOOKLYNK SERVICES PRIVATE LIMITED, CIN: U73100UP2025PTC228638, GSTIN: 09AANCB7737M1ZV, a company incorporated under the Companies Act, 2013, having its registered/head office at Building No./Flat No.: Plot No. A4, Logix Technova, B-320, Sector-132, Greater Noida, District Gautam Buddh Nagar, Uttar Pradesh – 201304, hereinafter referred to as the “Company” or “BookLynk”, which expression shall, unless repugnant to the context, include its successors, permitted assigns and representatives;

AND

_____, having principal place of business at _____, PAN: _____, GSTIN: _____, hereinafter referred to as the “Vehicle Owner” or “Owner”, which expression shall, unless repugnant to the context, include his/her legal heirs, representatives and permitted assigns.

The Company and the Vehicle Owner are individually referred to as a “Party” and collectively as the “Parties”.

RECITALS

The Company is engaged in the business of fleet management and commercial deployment of electric vehicles, including deployment through delivery partners, fleet operators, gig-economy riders and other authorised users.

The Vehicle Owner desires to acquire electric two-wheelers through the Company and participate in the Company's fleet management programme for the purpose of earning an assured monthly rental.

The Parties have agreed that the Vehicle Owner shall purchase the Vehicles through the Company at the agreed purchase price and, following completion of the purchase and delivery, shall hand over possession of the Vehicles to the Company for exclusive management and commercial deployment during the Agreement Period.

The Company has agreed to manage, operate and commercially deploy the Vehicles and, subject to the terms of this Agreement, pay the Vehicle Owner the Assured Monthly Rental.

The Parties intend that ownership of the Vehicles shall remain with the Vehicle Owner during the Agreement Period unless the Vehicles are subsequently purchased by the Company pursuant to the applicable buyback or exit provisions.

The Parties therefore wish to record the complete terms governing the purchase, handover, management, operation, insurance, maintenance, payment, termination, settlement and eventual return/buyback of the Vehicles.

1. DEFINITIONS

1.1 “Vehicle” means either of the forty electric two-wheelers purchased by the Vehicle Owner through the Company, including its motor, battery, charger, accessories and other components specified therein.

1.2 “Vehicle Purchase Price” means the purchase price payable per Vehicle, inclusive of applicable GST.

1.3 “Commencement Date” means the date on which the Vehicle is physically handed over by the Vehicle Owner to the Company for commencement of fleet management, as recorded in the Vehicle Handover Report.

1.4 “Agreement Period” means a period of four (4) years commencing from the Commencement Date.

1.5 “Assured Monthly Rental” means the fixed monthly amount payable by the Company to the Vehicle Owner for the Company’s exclusive management, possession, deployment and commercial utilisation of the Vehicles, as specified in Clause 8.

1.6 “Delivery Partner” means any company, business, fleet operator, contractor, platform, individual or other entity/person engaged by the Company for delivery, logistics, transportation or other lawful commercial activities.

1.7 “Authorised Rider” means any rider, driver, employee, contractor, agent, Delivery Partner or other person authorised by the Company to operate the Vehicles.

1.8 “Normal Wear and Tear” means reasonable deterioration arising from ordinary and lawful commercial use of the Vehicles consistent with their age, mileage and intended purpose.

1.9 “Total Loss” means theft, destruction or damage to the Vehicles such that the insurer or competent authority determines that the Vehicles cannot reasonably be repaired or restored for lawful use.

1.10 “Business Day” means a day other than a Sunday or public holiday in Uttar Pradesh.

1.11 “Applicable Law” means all applicable central, state and local laws, rules, regulations, notifications, circulars, orders, directions and governmental requirements applicable to the Parties, Vehicles or transaction.

2. MANDATORY PURCHASE OF VEHICLES THROUGH BOOKLYNK

2.1 The Vehicle Owner agrees to purchase the Vehicles through the Company, and such purchase shall be a condition precedent to enrolment of the Vehicles under the Company’s fleet management programme.

2.2 The Vehicle Owner shall not substitute the Vehicles with an independently purchased vehicle unless expressly approved by the Company in writing.

2.3 The Company shall facilitate/supply the Vehicles through its designated OEM/dealer channel, as applicable.

2.4 The precise seller of record shall be identified in the applicable purchase invoice. If BookLynk is the seller, the purchase invoice shall be issued by BookLynk. If the OEM/dealer is the seller, the invoice shall be issued by the OEM/dealer and BookLynk’s role shall be separately identified.

2.5 The Parties shall ensure that the contractual documentation and invoice accurately reflect the actual commercial structure and flow of consideration.

3. PURCHASE PRICE AND PAYMENT

3.1 The Vehicle Purchase Price shall be per Vehicle, inclusive of applicable GST.

3.2 The Vehicle Owner shall pay the Vehicle Purchase Price for each of the forty Vehicles through the payment mechanism designated by the Company.

3.3 The Company shall issue or facilitate issuance of the applicable purchase invoice in accordance with the actual seller-of-record arrangement.

3.4 Unless expressly stated otherwise, the purchase price shall include the Vehicles and standard accessories specified by the OEM/dealer.

3.5 Any registration charges, statutory charges, insurance premium, optional accessories or other amounts not included in the Vehicle Purchase Price shall be specifically identified before payment.

4. OWNERSHIP AND TITLE

4.1 Subject to payment of the Vehicle Purchase Price and completion of applicable sale/delivery formalities, the Vehicle Owner shall acquire ownership/title in the Vehicles in accordance with Applicable Law.

4.2 The Vehicle Owner shall remain the legal owner of the Vehicles during the Agreement Period unless ownership is subsequently transferred to the Company under an expressly executed sale/buyback/exit transaction.

4.3 Nothing contained in this Agreement shall by itself transfer ownership of the Vehicles to the Company.

4.4 The Vehicle Owner represents and warrants that, after purchase, the Vehicles shall not be sold, transferred, pledged, hypothecated, mortgaged, leased or otherwise encumbered during the Agreement Period without the Company's prior written consent, except as expressly permitted under this Agreement.

4.5 The Vehicle Owner shall execute all documents reasonably required for registration, insurance, transfer, claims, warranty and operation of the Vehicles.

5. DELIVERY AND HANDOVER

5.1 Following purchase and completion of delivery formalities, the Vehicle Owner shall hand over physical possession of all forty Vehicles to the Company.

5.2 The handover shall be recorded in a Vehicle Handover Report.

5.3 The Handover Report shall record the VIN/chassis number, motor number, battery number, charger number, odometer reading, vehicle condition, accessories, photographs, documents handed over, keys and any existing damage.

5.4 The Commencement Date shall be the date recorded in the signed Handover Report.

5.5 From the Commencement Date, the Company shall have exclusive contractual possession and operational control of the Vehicles for the Agreement Period, subject to this Agreement.

6. COMPANY'S EXCLUSIVE MANAGEMENT RIGHTS

6.1 The Vehicle Owner hereby grants to the Company an exclusive right during the Agreement Period to possess, manage, operate, deploy and commercially utilise the Vehicles.

6.2 The Company may deploy the Vehicles through Delivery Partners, fleet operators, authorised riders, employees, contractors, agents and other authorised persons.

6.3 The Company may determine rider allocation, Delivery Partner, geographical area of deployment, operating schedule, delivery activity, commercial utilisation, maintenance schedule and operational methodology, subject to Applicable Law.

6.4 The Company shall remain responsible to the Vehicle Owner for its obligations under this Agreement notwithstanding deployment through Delivery Partners or Authorised Riders.

7. NO GUARANTEE OF UTILISATION

7.1 The Company shall use commercially reasonable efforts to deploy and commercially utilise the Vehicles.

7.2 However, the Company does not guarantee minimum kilometres, minimum rides, minimum deliveries, minimum rider utilisation, minimum Delivery Partner revenue, continuous deployment or any particular level of commercial utilisation.

7.3 The absence or reduction of commercial utilisation shall not by itself constitute a breach by the Company, provided the Company continues to comply with its express payment and other contractual obligations.

8. ASSURED MONTHLY RENTAL

8.1 In consideration of the Company's exclusive management, possession and commercial use of the Vehicles, the Company shall pay the Vehicle Owner an Assured Monthly Rental of ₹4,500/- (Rupees Four Thousand Five Hundred only) per Vehicle per month.

8.2 The payment shall be made on or before the 5th day of each succeeding calendar month in respect of the immediately preceding month.

8.3 The first month's rental shall be calculated on a pro-rata basis based on the number of days from the Commencement Date to the end of that calendar month.

8.4 The Assured Monthly Rental shall be credited by the Company to the bank account designated by the Vehicle Owner in writing, subject to applicable TDS or other statutory deductions.

8.5 The Company shall be entitled to deduct TDS or any other statutory withholding where required by Applicable Law.

8.6 The Company shall provide applicable tax deduction documentation/certificates in accordance with law.

8.7 The Assured Monthly Rental shall not be dependent on the Company's actual recovery from any rider or Delivery Partner, except where this Agreement expressly provides otherwise.

9. DELAYED PAYMENT

9.1 If the Assured Monthly Rental is not received by the due date, the Company shall have a grace period of five (5) calendar days.

9.2 Thereafter, interest may accrue on the overdue amount at the rate of 7% per annum, subject to Applicable Law, from the original due date until actual payment.

9.3 Any agreed interest/default amount shall be subject to Applicable Law and the principles governing reasonable compensation for breach.

10. TAXES, GST AND STATUTORY DEDUCTIONS

10.1 The Vehicle Purchase Price shall be inclusive of applicable GST as reflected in the applicable purchase invoice.

10.2 The tax treatment of the Assured Monthly Rental shall be determined in accordance with Applicable Law.

10.3 Where TDS is legally required, the Company may deduct the applicable amount and deposit it with the Government.

10.4 The Vehicle Owner shall provide PAN and such other information as may reasonably be required for statutory reporting.

10.5 Each Party shall be responsible for taxes legally imposed upon that Party.

11. REGISTRATION AND MOTOR VEHICLE COMPLIANCE

11.1 The Parties acknowledge that the legal classification and regulatory requirements applicable to the Vehicles shall be determined under the Motor Vehicles Act, 1988, Central Motor Vehicles Rules, applicable notifications and other Applicable Law.

11.2 Where registration is legally required, the Vehicles shall not be deployed in a manner contrary to registration requirements.

11.3 Where any permit, fitness certificate, licence, registration, tax, authorisation or other regulatory approval is legally required for the intended use, the responsible Party shall obtain and maintain it.

11.4 The Parties shall not rely solely on the description of the Vehicles as low-speed electric vehicles to determine legal exemption. The applicable technical specifications and regulatory classification shall govern.

11.5 The Company shall ensure that its deployment and use of the Vehicles comply with Applicable Law.

12. RIDER AND DELIVERY PARTNER COMPLIANCE

12.1 The Company shall use reasonable procedures for identifying and authorising riders and Delivery Partners.

12.2 The Company shall require Authorised Riders, wherever applicable, to possess a valid driving licence, comply with traffic laws and age requirements, use safety equipment, not drive under the influence of alcohol or prohibited substances, not overload the Vehicles, not use the Vehicles for unlawful purposes and comply with Company safety policies.

12.3 The Company shall not knowingly permit an unauthorised person to operate the Vehicles.

12.4 The Company shall remain responsible for the acts and omissions of its riders/agents/Delivery Partners to the extent provided under this Agreement and Applicable Law.

13. TRAFFIC FINES, CHALLANS AND PENALTIES

13.1 As between the Parties, the Company shall be responsible for traffic fines, e-challans, parking penalties, towing charges and similar operational penalties arising from use of the Vehicles by the Company, its Authorised Riders, employees, agents or Delivery Partners.

13.2 The Vehicle Owner shall not be responsible for operational penalties arising during the period in which the Vehicles are under the Company's operational control, except where such liability is directly attributable to the Owner's act or omission.

13.3 The Company shall reasonably cooperate in responding to governmental notices relating to the operational use of the Vehicles.

14. MAINTENANCE AND SERVICING

14.1 The Company shall be responsible for routine maintenance and servicing during the Agreement Period.

14.2 The Company shall use genuine or OEM-recommended parts where reasonably available.

14.3 The Company shall maintain reasonable service records.

14.4 Normal wear and tear arising from authorised commercial use shall be the Company's responsibility.

14.5 Damage resulting from accident, negligence, misuse or unauthorised use by Company personnel, riders, Delivery Partners or agents shall be handled in accordance with the insurance and indemnity provisions of this Agreement.

15. BATTERY AND CHARGER

15.1 The Company shall be responsible for reasonable care and maintenance of the battery during its operational possession.

15.2 Charging shall be carried out in accordance with OEM instructions.

15.3 Battery warranty claims shall be pursued under the OEM warranty wherever applicable.

15.4 The Company shall not be liable for ordinary battery degradation arising from the battery's normal useful life, except where caused by negligence, misuse or violation of OEM instructions attributable to the Company or its Authorised Riders.

15.5 Responsibility for battery replacement shall depend upon whether replacement is required due to OEM defect/warranty, normal degradation, accident, misuse, theft or negligence, as determined under this Agreement.

16. INSURANCE

16.1 The Company shall arrange and maintain appropriate insurance for the Vehicles during the Agreement Period, subject to availability of suitable coverage.

16.2 The insurance shall, wherever applicable and available, include third-party liability, own damage, theft, fire, accident, natural calamity and other appropriate risks.

16.3 The policy shall correctly disclose the nature of intended use and the relevant insured/registered owner.

16.4 The Company shall pay insurance premiums during the Agreement Period unless otherwise expressly provided.

16.5 The Company shall manage insurance claims arising from operational use.

16.6 The Vehicle Owner shall provide documents reasonably necessary for insurance claims.

16.7 Nothing in this Agreement shall be interpreted as excluding any liability that cannot lawfully be excluded under Applicable Law.

17. ACCIDENTS

17.1 In case of an accident, the Company shall, as reasonably practicable, arrange emergency assistance, inform the police where required, notify the insurer, inform the Vehicle Owner, collect relevant evidence, identify the rider, initiate the insurance claim and arrange inspection/repair.

17.2 The Company shall not knowingly suppress material information regarding a serious accident, theft or Total Loss.

17.3 The Company shall cooperate with authorities and insurers.

18. THEFT AND TOTAL LOSS

18.1 In case of theft, the Company shall promptly lodge/assist with the required police complaint and initiate the insurance claim.

18.2 In case of Total Loss, the Company shall coordinate with the insurer for settlement.

18.3 Insurance proceeds shall be dealt with in accordance with the policy and the legal ownership of the Vehicles.

18.4 Treatment of rental payments during a theft/Total Loss shall be borne by the Company.

18.5 Any uninsured loss attributable to the Company's negligence, wilful misconduct or breach shall be borne by the Company, subject to Applicable Law.

19. COMPANY'S OPERATIONAL LIABILITY

19.1 During the period in which the Vehicles are under the Company's possession, control or management, the Company shall, as between the Parties, assume responsibility for liabilities arising from the Company's operation, deployment or use of the Vehicles, subject to insurance and Applicable Law.

20. INDEMNITY BY COMPANY

20.1 The Company shall indemnify and hold harmless the Vehicle Owner against third-party claims, losses, damages, costs and reasonable legal expenses arising directly from negligent operation by the Company's Authorised Riders, employees, agents or Delivery Partners; operational traffic violations attributable to such persons; unauthorised use by Company personnel; damage caused by the Company's negligence or wilful misconduct; and the Company's material breach of this Agreement.

20.2 The indemnity shall not apply to losses caused by the Owner's own fraud, wilful misconduct, breach or unlawful act.

21. OWNER'S REPRESENTATIONS AND WARRANTIES

21.1 The Vehicle Owner represents that the Owner has full legal capacity and authority to enter into this Agreement.

21.2 The KYC documents supplied to the Company are genuine and accurate.

21.3 The Owner shall acquire the Vehicles lawfully.

21.4 After acquisition, the Owner shall not create any encumbrance over the Vehicles without the Company's written consent, except as expressly permitted under this Agreement.

21.5 The Owner shall cooperate with registration, insurance, warranty and statutory procedures.

21.6 The Owner shall not interfere with the Company's lawful possession and operation during the Agreement Period except in accordance with this Agreement.

22. COMPANY'S REPRESENTATIONS AND WARRANTIES

22.1 The Company represents that it is duly incorporated and authorised to enter into this Agreement.

22.2 It shall provide/facilitate the Vehicles through the agreed OEM/dealer channel.

22.3 It shall provide reasonable assistance relating to OEM warranty claims.

22.4 It shall operate the Vehicles in accordance with Applicable Law.

22.5 It shall maintain applicable insurance in accordance with Clause 16.

23. NO INTERFERENCE BY OWNER

23.1 During the Agreement Period, the Owner shall not demand physical possession except under the termination/exit provisions, remove the Vehicles from the Company's custody, interfere with a rider, instruct a Delivery Partner directly, sell or transfer the Vehicles, disable tracking/telematics, alter the Vehicles or otherwise interfere with the Company's contractual management rights, except as expressly permitted under this Agreement.

24. GPS, TELEMATICS AND VEHICLE DATA

24.1 The Company may install and use lawful GPS, telematics and other fleet-management technology.

24.2 The Company may collect location information, mileage, battery information, usage information, maintenance data, rider information and operational data.

24.3 Such information may be used for fleet management, safety, maintenance, insurance, analytics, compliance and legitimate business purposes, subject to Applicable Law.

25. CONFIDENTIALITY

25.1 Each Party shall keep confidential non-public information received from the other Party in connection with this Agreement.

25.2 This obligation shall not apply to information already publicly available, independently developed, required to be disclosed by law or disclosed to professional advisers subject to confidentiality obligations.

26. DATA PROTECTION

26.1 Each Party shall process personal information received under this Agreement in accordance with Applicable Law.

26.2 The Parties shall use reasonable safeguards to protect KYC, banking, rider and operational information.

26.3 The Parties shall avoid unnecessary inclusion or circulation of sensitive identity information in copies of this Agreement.

27. TERM

27.1 This Agreement shall remain effective for four (4) years from the Commencement Date, unless terminated earlier in accordance with this Agreement.

27.2 The Parties may extend the Agreement by written agreement.

28. TERMINATION BY OWNER FOR COMPANY DEFAULT

28.1 The Vehicle Owner may terminate this Agreement upon the occurrence of any of the following events:

28.1(a) the Company fails to pay the Assured Monthly Rental for two (2) consecutive months;

28.1(b) the Company commits a material breach of this Agreement and fails to cure such breach within thirty (30) days after receipt of written notice from the Vehicle Owner;

28.1(c) the Company becomes insolvent, enters liquidation, or ceases substantial business operations;

28.1(d) continued performance of the Agreement becomes unlawful; or

28.1(e) the Company otherwise fails to fulfil any material contractual, operational or service-level obligation and such failure remains uncured for thirty (30) days after written notice.

28.2 For the purposes of this Clause, a failure to pay the Assured Monthly Rental for two (2) consecutive months shall constitute a Material Default.

28.3 Where termination occurs due to a Company Default, the financial settlement and treatment of the Vehicles shall be governed by Clause 34 read with Clause 33 and shall not be treated as an ordinary early termination by the Vehicle Owner under Clause 30.

29. TERMINATION BY COMPANY FOR OWNER DEFAULT

29.1 The Company may terminate this Agreement if the Owner materially breaches the Agreement; attempts to sell/transfer/encumber the Vehicles; interferes with the Company's lawful possession; provides false KYC/documents; commits fraud or material misrepresentation; or otherwise materially breaches the Agreement and fails to cure it within 30 days of written notice.

30. EARLY TERMINATION BY OWNER WITHOUT COMPANY DEFAULT

30.1 If the Vehicle Owner wishes to exit from this Agreement before expiry without any Default by the Company, the Vehicle Owner shall provide at least sixty (60) days' prior written notice.

30.2 Such termination shall not entitle the Vehicle Owner to claim the refund, interest or other capital-protection benefits available under Clause 34 for a Company Default.

30.3 The Company shall be entitled to recover only such amounts as are expressly payable under this Agreement in connection with such voluntary early termination, subject always to Applicable Law.

30.4 Upon completion of the applicable settlement and exit formalities, the Company shall return possession of the Vehicles to the Vehicle Owner, subject to the rights and obligations expressly provided under this Agreement.

30.5 For avoidance of doubt, the pre-Breakeven refund mechanism under Clause 34.2 shall apply only where the Agreement is terminated as a result of a Company Default, and shall not apply to an early termination initiated by the Vehicle Owner without a Company Default.

31. EXIT AND VEHICLE RETURN

31.1 Upon termination, the Parties shall prepare a final settlement statement.

31.2 The Vehicle shall be inspected.

31.3 Pending insurance claims shall be identified.

31.4 Outstanding rentals, statutory amounts, authorised deductions and other contractual dues shall be reconciled.

31.5 The Vehicle shall be returned to the Owner where the Owner is entitled to retain it.

31.6 If the Company purchases the Vehicles, the Parties shall execute the necessary sale/transfer documents.

31.7 No provision of this Agreement shall be interpreted as automatically transferring legal ownership without completion of legally required transfer documentation.

32. BUYBACK AFTER FOUR YEARS

32.1 Upon successful completion of the four-year Agreement Period, the Company shall offer the Vehicle Owner a buyback price of ₹7,000/- (Rupees Seven Thousand only) per Vehicle.

32.2 The Owner may elect either to take back possession of the Vehicles or sell the Vehicles to the Company for ₹7,000/- subject to execution of applicable transfer documentation.

32.3 The election shall be made in writing at least 30 days before expiry.

32.4 Transfer charges, taxes and statutory fees shall be borne as specified in this Agreement.

32.5 The buyback price shall be subject to applicable tax treatment.

33. BREAKEVEN

33.1 “Breakeven Date” means, in respect of each Vehicle, the date on which the aggregate Assured Monthly Rentals actually received by the Vehicle Owner, after excluding GST, TDS and other statutory deductions required by Applicable Law, equal or exceed the applicable Vehicle Purchase Price.

33.2 Where more than one Vehicle is covered under this Agreement, Breakeven shall be calculated separately for each Vehicle, unless the Parties expressly agree in writing to calculate it on an aggregate basis.

33.3 The Parties acknowledge that the term “Breakeven” is used solely as a contractual commercial calculation for determining the applicable default and exit settlement mechanism.

33.4 Nothing in this Clause shall constitute or be construed as creating a loan, deposit, security deposit, financial investment, collective investment scheme, financial product or guaranteed return on capital.

33.5 The Assured Monthly Rental represents the contractual consideration payable under the fleet management/use arrangement.

33.6 Upon achievement of Breakeven, the Vehicle Owner shall have received cumulative Assured Monthly Rentals equivalent to the applicable Vehicle Purchase Price. However, the Agreement shall continue for the remaining Agreement Period unless terminated in accordance with its terms.

34. COMPANY DEFAULT AND INVESTMENT PROTECTION

34.1 DEFAULT. If the Company fails to fulfil any material commitment, payment obligation, service-level obligation, operational obligation or other material obligation under this Agreement, and such failure constitutes a Default which remains uncured for thirty (30) days after receipt of written notice from the Vehicle Owner, the remedies under this Clause shall apply. For avoidance of doubt, non-payment of Assured Monthly Rental for two (2) consecutive months shall constitute a Material Default in accordance with Clause 28.

34.2 PRE-BREAKEVEN DEFAULT – REFUND OF PURCHASE PRICE WITH INTEREST. If a Company Default occurs and the Agreement is terminated before the applicable Vehicle has achieved its Breakeven Date, the Company shall be liable to pay the Vehicle Owner a settlement amount calculated in accordance with this Clause. The settlement amount shall be calculated as follows: $\text{Refund Amount} = [\text{Vehicle Purchase Price} + \text{Interest}] - \text{Cumulative Assured Monthly Rentals Received}$. $\text{Interest} = \text{Vehicle Purchase Price} \times 7\% \times (\text{Number of days elapsed} / 365)$. The interest shall be calculated from the date on which the Vehicle Owner made payment of the applicable Vehicle Purchase Price until the date on which the refund amount is actually paid.

34.3 DEDUCTION OF RENTALS. For purposes of calculating the refund under Clause 34.2, the Company shall be entitled to deduct the cumulative Assured Monthly Rentals actually received by the Vehicle Owner up to the date of termination. For avoidance of doubt, GST, TDS and statutory deductions shall not be treated as amounts received by the Vehicle Owner for the purpose of calculating Breakeven, to the extent such amounts are required to be excluded under Applicable Law.

34.4 SETTLEMENT FORMULA. The settlement amount shall therefore be: $\text{Refund Amount} = \text{Vehicle Purchase Price} + (\text{Vehicle Purchase Price} \times 0.07 \times t/365) - \text{Cumulative Assured Monthly Rentals Received}$, where “t” means the number of days elapsed from the date of payment of the applicable Vehicle Purchase Price until the date of actual refund.

34.5 TIME FOR PAYMENT. The Company shall pay the entire resulting settlement amount to the Vehicle Owner within sixty (60) days from the effective date of termination arising from the Company Default. All accrued and unpaid Assured Monthly Rentals up to the effective date of termination shall also be included in the final settlement, to the extent not already accounted for in the calculation under Clause 34.2.

34.6 REVERSION OF VEHICLE UPON REFUND. Upon full payment of the amount payable under Clause 34.2: (a) the Vehicle Owner shall transfer the ownership/title of the relevant Vehicle to the Company; (b) the Company shall take possession of the Vehicle; (c) the Parties shall execute all documents reasonably necessary for transfer of ownership, registration, insurance and other statutory

records; and (d) upon completion of such payment and transfer, the Vehicle Owner shall have no further claim against the Company in respect of the relevant Vehicle, except for claims expressly surviving under this Agreement or under Applicable Law. No ownership transfer shall occur merely by virtue of termination. Ownership shall transfer only upon payment of the applicable settlement amount and completion of the legally required transfer formalities.

34.7 POST-BREAKEVEN DEFAULT. Where the relevant Vehicle has already achieved its Breakeven Date before the occurrence of the Company Default, the pre-Breakeven refund mechanism under Clause 34.2 shall not apply. However, where the Company Default occurs within three (3) months immediately following the Breakeven Date, the Company shall remain liable to pay the Assured Monthly Rental for the balance of such three-month period, subject to the terms of this Agreement. Such three-month period shall constitute a Post-Breakeven Commitment Period.

34.8 COMPLETION OF POST-BREAKEVEN COMMITMENT. Upon completion of the three-month Post-Breakeven Commitment Period, the Vehicle Owner's original Vehicle Purchase Price shall be deemed commercially recovered through cumulative rental distributions for purposes of this contractual settlement mechanism. Thereafter, any termination, transition or return of the Vehicle shall be dealt with in accordance with the ordinary exit provisions of this Agreement.

34.9 NO DOUBLE RECOVERY. The Vehicle Owner shall not be entitled to recover the same amount twice under different provisions of this Agreement. Any amount actually paid to the Vehicle Owner as part of the settlement under this Clause shall be appropriately credited against any other amount claimed for the same period, event or loss.

34.10 FORCE MAJEURE AND OWNER DEFAULT. The capital-protection/refund mechanism under Clause 34.2 shall not apply where the Company's inability to perform the relevant obligation is directly caused by a Force Majeure Event, subject to Clause 36, or where termination has occurred as a result of the Vehicle Owner's own material breach, fraud, wilful misconduct or unlawful act. However, amounts which have already accrued and become payable to the Vehicle Owner before the occurrence of the relevant Force Majeure Event shall remain payable subject to Applicable Law.

35. LIMITATION OF LIABILITY

35.1 Except for fraud, wilful misconduct, confidentiality breach, indemnity obligations, death or personal injury to the extent liability cannot lawfully be excluded, statutory liabilities that cannot be contractually limited, and the Company's payment and settlement obligations expressly arising under Clauses 8, 9 and 34, neither Party shall be liable to the other for indirect, special, incidental or consequential losses to the extent such exclusion is permitted by Applicable Law.

35.2 For avoidance of doubt, the limitation of liability contained in this Clause shall not restrict or reduce the Company's obligation to pay any Assured Monthly Rental, default interest or settlement/refund amount expressly payable under Clause 34.

36. FORCE MAJEURE

36.1 Neither Party shall be liable for failure or delay in performing an obligation to the extent such failure or delay is directly caused by circumstances beyond its reasonable control, including natural disasters, war, riots, epidemics, governmental restrictions, regulatory changes, widespread infrastructure failure, fire, flood or other comparable events.

36.2 The affected Party shall promptly notify the other Party of the Force Majeure Event and shall take reasonable steps to mitigate its effects.

36.3 A Force Majeure Event shall not, by itself, constitute a Company Default for purposes of Clause 34.

36.4 If a Force Majeure Event continues for more than one hundred and eighty (180) consecutive days and materially prevents continued performance of this Agreement, either Party may request termination and settlement in accordance with Clause 31, subject to Applicable Law.

36.5 Termination due to Force Majeure shall not trigger the pre-Breakeven refund with 7% interest under Clause 34.2, unless otherwise expressly agreed by the Parties in writing.

37. ASSIGNMENT

37.1 The Owner shall not assign, transfer, sell or encumber its rights or obligations under this Agreement without the Company's written consent, except as expressly permitted under the exit and transfer provisions of this Agreement.

37.2 The Company may engage Delivery Partners, fleet operators, contractors and service providers for operational purposes.

37.3 Such engagement shall not relieve the Company of its contractual obligations to the Vehicle Owner.

38. NO PARTNERSHIP OR AGENCY

38.1 Nothing in this Agreement shall create a partnership, joint venture, employment, agency between the Owner and Company or fiduciary relationship, except where expressly required by Applicable Law.

39. COMPLIANCE WITH LAW

39.1 Each Party shall comply with laws applicable to its respective obligations.

39.2 The Company shall ensure that the commercial deployment and operational use of the Vehicles comply with applicable motor vehicle, traffic, insurance and other regulatory requirements.

40. NOTICES

40.1 All notices shall be sent to the addresses/email IDs stated below.

40.2 Notice may be delivered by registered post, courier, hand delivery or electronic mail.

41. DISPUTE RESOLUTION

41.1 The Parties shall first attempt to resolve any dispute through good-faith negotiations for a period of 15 days.

41.2 If unresolved, the dispute shall be referred to arbitration under the Arbitration and Conciliation Act, 1996.

41.3 The arbitration shall be conducted by a sole arbitrator mutually appointed by the Parties.

41.4 If the Parties fail to agree on the arbitrator within the prescribed period, appointment shall be made in accordance with Applicable Law.

41.5 The seat and venue of arbitration shall be at New Delhi, unless otherwise mutually agreed.

41.6 The language of arbitration shall be English.

41.7 Nothing prevents either Party from seeking interim or protective relief from a competent court where permitted by law.

42. JURISDICTION

42.1 Subject to the arbitration clause, courts having competent jurisdiction at Gautam Buddh Nagar, Uttar Pradesh shall have jurisdiction over matters requiring judicial intervention.

43. STAMP DUTY AND EXECUTION

43.1 This Agreement shall be executed on appropriate stamp/e-stamp paper and with applicable stamp duty under the laws applicable in Uttar Pradesh.

43.2 The Parties shall cooperate with any stamping, adjudication or registration requirements that may legally apply to the instrument.

43.3 Unless otherwise agreed, stamp duty shall be borne by [Company/Owner/equally].

44. ELECTRONIC EXECUTION

44.1 This Agreement may be executed in counterparts and through legally recognised electronic/digital signatures.

44.2 Electronic execution shall have the same contractual effect as physical execution to the extent recognised under Applicable Law.

45. ENTIRE AGREEMENT

45.1 This Agreement together with its Annexures constitutes the entire agreement between the Parties concerning the Vehicles and supersedes prior oral or written understandings relating to the same subject matter.

46. AMENDMENT

46.1 No amendment, modification or waiver of this Agreement shall be valid unless made in writing and signed by authorised representatives of both Parties.

47. WAIVER

47.1 Failure or delay by either Party in exercising any right under this Agreement shall not constitute a waiver of that right.

48. SEVERABILITY

48.1 If any provision is held invalid or unenforceable, the remaining provisions shall continue in full force and effect to the extent permitted by law.

48.2 The Parties shall endeavour to replace the invalid provision with a valid provision that most closely reflects the original commercial intention.

49. SURVIVAL

49.1 Clauses relating to payment, accrued rentals, default interest, indemnity, confidentiality, data protection, liability, ownership and transfer, insurance claims, dispute resolution, Default, Breakeven, settlement and refund obligations, outstanding claims and any other provisions which by their nature are intended to survive termination or expiry shall survive termination or expiry of this Agreement to the extent necessary to give them full effect.

50. COUNTERPARTS

50.1 This Agreement may be executed in multiple counterparts, each of which shall be deemed an original and all of which together shall constitute one instrument.

51. ACKNOWLEDGEMENT OF COMMERCIAL STRUCTURE

51.1 The Vehicle Owner expressly acknowledges that forty electric two-wheelers are being purchased through the Company; the Owner becomes the owner of the Vehicles upon completion of the purchase; the Vehicles are thereafter handed over to the Company for exclusive fleet management; the Company shall commercially deploy the Vehicles; the Owner shall receive an Assured Monthly Rental of ₹4,500/- per Vehicle per month, subject to this Agreement; the Company does not guarantee any particular number of rides, kilometres, riders or commercial utilisation; and the Vehicles shall be returned to the Owner or purchased by the Company in accordance with the applicable exit/buyback mechanism.

51.2 The Vehicle Owner further acknowledges that, in the event of a Company Default, the applicable financial settlement shall be determined in accordance with Clause 34, including the distinction between a Default occurring before and after the applicable Breakeven Date. The Owner acknowledges that the pre-Breakeven settlement under Clause 34 may result in transfer of the relevant Vehicle to the Company upon payment of the applicable settlement amount.

52. NO INVESTMENT/DEPOSIT REPRESENTATION

52.1 The Parties expressly acknowledge that the amount paid by the Vehicle Owner is the Vehicle Purchase Price paid as consideration for the acquisition of the Vehicles and is not, by itself, a deposit, loan, security deposit, collective investment, financial product or investment made with the Company.

52.2 For the limited purpose of calculating the contractual settlement payable upon a Company Default under Clause 34, the Vehicle Purchase Price may be referred to as the "Initial Purchase Amount" or

“Capital Amount”. Such terminology is solely for contractual settlement and accounting purposes and shall not alter the legal or commercial character of the underlying transaction as a purchase of physical Vehicles.

52.3 The Assured Monthly Rental represents the contractual consideration payable by the Company for the exclusive management, possession, deployment and commercial utilisation of the Vehicles and shall not be construed as interest or return on a financial investment.

53. FINAL ACKNOWLEDGEMENT

53.1 The Vehicle Owner confirms that the Agreement has been read and understood; the Owner has had an opportunity to seek independent legal/tax advice; the Owner is voluntarily entering into the transaction; the Owner understands the purchase price, four-year management period, monthly rental, termination mechanism, Breakeven mechanism, Company Default settlement provisions and ₹7,000 buyback option.

COMMERCIAL TERMS CONFIRMED: electric scooters; per scooter inclusive of applicable GST; total purchase price _____; fixed rental per scooter per month ₹4,500/-; total monthly rental _____; Agreement Period 48 months.

IN WITNESS WHEREOF

The Parties have executed this Agreement on the date first written above.

FOR BOOKLYNK SERVICES PRIVATE LIMITED

Authorized Signatory: _____

Name: _____

Designation: _____

Signature: _____

Company Seal: _____

Date: _____

VEHICLE OWNER

Name: _____

Signature: _____

Date: _____

ANNEXURE B: VEHICLE OWNER BANK DETAILS

Account Holder Name: _____

Bank Name: _____

Account Number: _____

IFSC Code: _____